

Amendment No. 1 to SB0959

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 959*

House Bill No. 1363

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 35, is amended by adding the following as a new part:

40-35-601.

(a) Notwithstanding another law to the contrary:

(1) A person serving a sentence of incarceration for a felony offense committed prior to January 1, 2026, and who is a victim of abuse subjected to substantial physical, sexual, or psychological abuse inflicted by an abuser may, on or after January 1, 2026, submit to the sentencing court a request to apply for resentencing in accordance with this part. The person must include in the request documentation proving that the person is serving a sentence of incarceration for an offense committed prior to January 1, 2026, and that the person is serving such sentence for an offense eligible for an alternative sentence pursuant to this part.

(2) A person who has been convicted on or after January 1, 2026, of a felony offense and who is a victim of abuse subjected to substantial physical, sexual, or psychological abuse inflicted by an abuser may submit to the sentencing court a request to apply for sentencing in accordance with this part. The person must include in the request documentation proving that the person's offense is eligible for an alternative sentence pursuant to this part.

(b) Upon receiving a request submitted pursuant to subsection (a), if the court finds that the person has met the requirements to apply for sentencing or resentencing in subsection (a), then the court shall notify such person that the person may submit an application for sentencing or resentencing pursuant to this part. For persons applying for resentencing, upon such notification, the person may request that the court appoint an attorney for the preparation of and proceedings on the application for resentencing pursuant to this part.

(c) Upon receiving a request submitted pursuant to subsection (a), if the court finds that the person has not met the requirements to apply for sentencing or resentencing in subsection (a), then the court shall notify such person and dismiss the request without prejudice.

(d) In order to be eligible for sentencing or resentencing pursuant to this part:

(1) The person's conviction must not be for a sexual offense or violent sexual offense, as defined in § 40-39-202; and

(2) The person must prove, by a preponderance of the evidence, that the abuse the person suffered was a substantial contributing factor to the offense for which the person was convicted.

(e) As used in this part, "abuser" means a person who has committed abuse against the victim or used the victim for financial gain and is related to the victim by blood, marriage, or adoption, was the spouse of the victim, lives or has lived with the victim, is dating or has dated the victim, has or has had a sexual relationship with the victim, or has trafficked the victim.

40-35-602.

(a) Upon the court's receipt of an application for sentencing or resentencing, the court shall promptly notify the district attorney general for the judicial district in which the offense occurred and provide such district attorney general with a copy of the application.

(b) An application for sentencing or resentencing pursuant to this part must include at least two (2) pieces of evidence corroborating the applicant's claim that, at the time of the offense, the applicant was a victim of abuse subjected to substantial physical, sexual, or psychological abuse inflicted by an abuser. At least one (1) piece of evidence must be either a court record, presentence report, social services record, hospital record, sworn statement from a witness to the abuse, law enforcement record, domestic incident report, or order of protection. Other evidence may include, but is not limited to, department of correction records, jail records, a showing based in part on documentation prepared at or near the time of the commission of the offense or the prosecution of the offense tending to support the person's claim, or verification of consultation with a licensed healthcare provider or mental healthcare provider, employee of a court acting within the scope of employment, member of the clergy, attorney, social worker, rape crisis counselor, or other advocate acting on behalf of an agency that assists victims of domestic violence for the purpose of assisting such person with domestic violence victim counseling or support.

(c) If the court finds that the applicant has not submitted corroborating evidence as required by subsection (b), then the court shall dismiss the application without prejudice.

(d) If the court finds that the applicant has complied with subsection (b), then the court shall conduct a hearing to determine whether the applicant is eligible to be sentenced or resentenced in accordance with this part. At such hearing, the court shall determine any controverted issue of fact relevant to the issue of sentencing. Reliable hearsay is admissible at such hearings.

(e)

(1) The court may consider any fact or circumstances relevant to the imposition of a sentence that are submitted by the applicant or the district attorney general.

(2) In cases of resentencing, the court may, in addition, consider the institutional record of confinement of the applicant, but shall not order a new presentence report or entertain any matter challenging the underlying basis of the subject conviction. The court's consideration of the institutional record of confinement of the applicant must include, but not be limited to, the applicant's participation in or willingness to participate in programming such as domestic violence, parenting, and substance abuse treatment while incarcerated and the applicant's disciplinary history. The fact that the applicant was unable to participate in treatment or other programming while incarcerated despite the applicant's willingness to do so shall not be considered a negative factor in determining an application pursuant to this section.

(f) If the court determines that the applicant is not eligible to be sentenced or resentenced in accordance with this part, then the court shall inform the applicant of its decision and enter an order to that effect. An order issued pursuant to this section must include written findings of fact and the reasons for the order.

(g)

(1) If the court determines that an applicant is eligible to be resentenced in accordance with this part, then the court shall notify the applicant that, unless the applicant withdraws the application, the court will enter an order vacating the sentence originally imposed and impose a new sentence pursuant to § 40-35-603.

(2) If the court determines that an applicant is eligible to be sentenced in accordance with this part, then the court shall notify the applicant of the determination and impose a sentence pursuant to § 40-35-603.

(3) An order issued pursuant to this part must include written findings of fact and the reasons for the order.

40-35-603.

A person who is eligible to be sentenced or resentenced according to this part must be sentenced or resentenced as follows:

- (1) For an offense punishable by life imprisonment without the possibility of parole, to a period of no more than thirty (30) years incarceration;
- (2) For an offense punishable by life imprisonment, to a period of no more than twenty-five (25) years incarceration;
- (3) For a Class A felony, to a period of no more than twenty (20) years incarceration;
- (4) For a Class B felony, to a period of no more than fifteen (15) years incarceration;
- (5) For a Class C felony, to a period of no more than eight (8) years incarceration;
- (6) For a Class D felony, to a period of no more than five (5) years incarceration; or
- (7) For a Class E felony, to a period of no more than three (3) years incarceration.

40-35-604.

(a) An appeal of a determination under § 40-35-602 or § 40-35-603 may be taken as of right:

- (1) From an order denying sentencing or resentencing pursuant to this part; or
- (2) In cases of resentencing, based on the grounds that:
 - (A) The term of the new sentence is harsh or excessive; or
 - (B) The term of the new sentence is unauthorized as a matter of law.

(b) Upon remand to the sentencing court following an appeal, the applicant must be given an opportunity to withdraw an application for resentencing before any resentence is imposed.

(c) The applicant may request that the court appoint the applicant an attorney for the preparation of and proceedings on any appeals regarding the application for resentencing pursuant to this part.

40-35-605.

In calculating the term to be served by an applicant pursuant to § 40-35-602(g), an applicant for resentencing must be credited for any jail time or period of incarceration credited toward the sentence originally imposed.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.